

WYOMING BUSINESS COUNCIL
BUSINESS READY COMMUNITY – BUSINESS COMMITTED PROGRAM
\$3,000,000 Loan to City of Cheyenne
for Swan Ranch Rail Park Rail Spur Project

Closing May ____, 2014

LIST OF CLOSING DOCUMENTS

1. Appraisal by Hilston Appraisals
2. Entity Documents
 - a. Granite Peak Development Limited Partnership
 - i. Certificate of Limited Partnership
 - ii. Limited Partnership Agreement
 - iii. Authorizing Resolutions
 - b. Swan Ranch, LLC
 - i. Articles of Organization
 - ii. Operating Agreement
 - iii. Authorizing Resolutions
 - c. Clear Creek Land Company, LLC
 - i. Articles of Organization
 - ii. Operating Agreement
 - iii. Authorizing Resolutions
 - d. CLH, LLC
 - i. Articles of Organization
 - ii. Operating Agreement
 - iii. Authorizing Resolutions

City to Granite Loan Documents

3. Amended and Restated Development and Administration Agreement
 - a. already executed
 - b. need copy of City's authorizing resolution for Contract #6145
4. Non-Negotiable Promissory Note
 - a. already executed by Granite and City
5. Assignment of Ownership of Rails Etc.
 - a. already executed by Granite, Swan, Clear Creek, and City
 - b. Notary paragraphs need to correctly identify the signatories
6. Rail Road Right of Way Easement
 - a. already executed
 - b. three-part corridor descriptions to be attached as Exhibit A
 - c. needs proper signature lines and acknowledgements
 - d. to be notarized
 - e. to be recorded
7. Track Lease Agreement
 - a. already executed
 - b. to be notarized
 - c. to be recorded

- d. need copy of City's authorizing resolution for Contract #6146
- 8. Mortgage by Swan and Clear Creek
 - a. already executed
 - b. 80-acre parcel to be described in Exhibit A
 - c. to be notarized
 - d. to be recorded
- 9. Title Insurance – Mortgage & Rail Corridors
 - a. insures City as mortgagee as to 80-acre parcel
 - b. insures City as easement holder as to rail corridors (three parcels)
 - c. insures WBC as additional insured (CLTA 107.10)
 - d. Parcel 1 to be same as lands described in the Mortgage
 - e. Parcels 2, 3, and 4 to be same as lands described in the Railroad Easement
 - f. no Schedule B-I requirements or Schedule B-II exceptions, unless accepted by City and WBC

WBC to City Loan Documents

- 10. Promissory Note
 - a. to be executed
 - b. to be executed
- 11. Business Ready Community – Business Committed Loan and Security Agreement
 - a. to be executed
 - b. to be notarized
- 12. Financing Statements
 - a. to be filed in County Real Estate Records, indexed against 80-acre parcel and three-part Rail Corridor
 - b. to be filed at Wyoming Secretary of State's Office
- 13. Collateral Assignment of Promissory Note, Mortgage, and Granite Loan Documents
 - a. to be executed
 - b. to be notarized
 - c. to be recorded, indexed against 80-acre parcel
 - d. to include consent to assignment and lien by Swan and Clear Creek, with acknowledgements
- 14. Collateral Assignment of Railroad Easement and Track Lease
 - a. to be executed
 - b. to be notarized
 - c. to be recorded, indexed against three-part Rail Corridor
 - d. to include consent to assignment and lien by Swan and Clear Creek, with acknowledgements
- 15. Consent of Swan and Clear Creek to Lien and Effect of Track Lease, Collateral Assignments, and Financing Statements